

Once a court grants a motion to compel arbitration, the case enters what has been called “the twilight zone of abatement,” in which the court maintains “merely a vestigial jurisdiction over matters submitted to arbitration.” (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) This vestigial jurisdiction generally “consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not....” (*Id.*) It follows that this court has no jurisdiction to adjudicate discovery motions pertaining to this lawsuit.

Accordingly the court lacks jurisdiction to rule on this discovery motion and it is dropped from calendar without prejudice.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
ISSUE CONFERENCE AND TRIAL PLANNING. ALL PARTIES WITH SETTLEMENT AUTHORITY SHALL
APPEAR IN PERSON IN D32. DEF ADJUSTER MAY ATTEND REMOTELY
FILED BY:

TENTATIVE RULING:

Parties to appear.

Law & Motion Add On

17. 9:00 AM CASE NUMBER: C25-02254
CASE NAME: REID GREENLAW VS. TERESA TRUONG
***MOTION/PETITION TO COMPEL ARBITRATION ADVANCED PER TR ON 6/26/26**
FILED BY: TRUONG, TERESA

TENTATIVE RULING:

Before the Court is a motion to compel arbitration filed by Defendant Emeritus Corporation dba Brookdale Danville (erroneously sued as Brookdale Danville), Defendant Brookdale Living Communities, Inc., Defendant Brookdale Senior Living Communities, Inc., Defendant Brookdale Senior Living Foundation, and Defendant Teresa Truong (collectively, “Defendants”). For the reasons set forth below, the motion is **granted**. The action shall be **stayed** pending completion of the arbitration.

The Plaintiffs’ motion for trial preference, continued to August 7, 2026 by the court’s order dated June 26, 2026, is **denied** as moot in light of this ruling.

The Court sets a **Case Management Conference** (“CMC”) to review the status of arbitration proceedings on **November 12, 2026** at 8:30 a.m. in Dept. 32. Parties must file a CMC Statement 10 days in advance of the hearing.

Judicial Notice

On reply, Defendants request judicial notice of JAMS arbitration rules. The unopposed request is **granted**. (Evid. Code §§ 452, 453.)

Background

Plaintiff Reid Greenlaw, Plaintiff Courtney Greenlaw, and Plaintiff the Estate of Mary Greenlaw (collectively, “Plaintiffs”) allege that Mary Greenlaw (“decedent” or “Greenlaw”) is Reid Greenlaw’s spouse and Courtney Greenlaw’s adoptive mother who died following Defendants’ care.

The Complaint alleges that Greenlaw was initially admitted as a resident at Brookdale Danville on or about February 5, 2023 with a history of health issues, including dementia and Alzheimer’s. (Complaint at ¶ 23.) The Complaint alleges a viral outbreak in approximately May 2024 in which several residents experienced vomiting and diarrhea. (*Id.* at ¶ 30.) On or about May 21, 2024 Defendants contacted Plaintiff Reid Greenlaw and informed him that Greenlaw’s condition had deteriorated and that Defendants believed she should be transported elsewhere for emergency medical services. (*Id.* at ¶ 36.) Thereafter, Greenlaw was transported to John Muir Medical Center where she received an admission diagnosis of Sepsis, Septic Shock With Acute Liver Failure, Acute Hypoxic Respiratory Failure, Acute Kidney Failure, Barrett’s Esophagus, Hypothermia, Dehydration, Renal Failure, Low Hemoglobin, and Altered Level of Consciousness. (*Id.*) Greenlaw passed away on or about May 25, 2024.

The Complaint alleges a cause of action for negligence, elder abuse, wrongful death, and negligent infliction of emotional distress. Reid Greenlaw filed a declaration under Code of Civil Procedure section 377.32 declaring he and Courtney Greenlaw are successors in interest.

The Defendants have moved to compel arbitration of Plaintiffs’ claims. Plaintiffs oppose the motion.

Procedures for Enforcement of Arbitration Agreement

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. section 1, *et seq.* (“FAA”) or by the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* (“CAA”), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract bar the enforcement of the arbitration agreement. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.) The party moving to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.]” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (*See also Rosenthal, supra*, 14 Cal.4th at 413.)

The party seeking arbitration meets its initial burden by attaching a copy of the arbitration agreement

at issue that purports to bear the respondent's signature. (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-544.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to its enforcement. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, supra*, 8 Cal.5th at 125; Code Civ. Proc. § 1281 [written agreement to arbitrate "is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract"]; 9 U.S.C. § 2 [an arbitration agreement is "valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract"].) Unconscionability is a defense to enforcement of contracts in general and grounds for finding an arbitration agreement unenforceable without contravening the FAA. (9 U.S.C. § 2; Civ. Code § 1670.5(a); *OTO, supra*, 8 Cal.5th at 125 [unconscionability].) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the existence of an enforceable arbitration agreement. (*Engalla, supra*, 15 Cal.4th at 972.)

Analysis

Existence of An Arbitration Agreement

A written agreement to submit a controversy to arbitration is valid, enforceable, and irrevocable consistent with standard contract principles. (Code Civ. Proc. § 1281.)

In *Quach v. California Commerce Club, Inc.* (2024) 16 Cal. 5th 562, 569 our Supreme Court recognized that the U.S. Supreme Court's decision in *Morgan v. Sundance, Inc.*, (2022) 596 U.S. 411, clarified that the federal policy "favoring arbitration," is about "putting arbitration agreements on equal footing with other contracts, *not about favoring arbitration.*" *Quach*, 16 Cal. 5th at 569 (emphasis added). The *Quach* Court declared, "California policy, like federal policy, puts arbitration agreements on equal footing with other types of contracts. Accordingly, under California law, as under federal law, a court should apply the same principles that apply to other contracts to determine whether the party seeking to enforce an arbitration agreement has waived its right to do so". *Quach*, 16 Cal. 5th at 569.

Here, Defendants have presented a Residency Agreement that includes an agreement to arbitrate, executed by Plaintiff Reid Greenlaw on January 27, 2023. (Davis Decl. at ¶ 7, Ex. A.) Plaintiff Reid Greenlaw does not contest either the authenticity of the Residency Agreement or the fact that he signed it. (Greenlaw Decl. at ¶ 6, Ex. B.) Plaintiffs' opposition argument that "Brookdale cannot show the parties ever agreed to arbitrate" lacks merit in several respects. First, Plaintiff Reid Greenlaw does not dispute that he clicked through the signature tags of the Residency Agreement. (*Id.*) "A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement." (*Caballero v. Premier Care Simi Valley LLC* (2021) 69 Cal.App.5th 512, 518 [plaintiff's inability to read English and his limited ability to speak or understand English did not alter the conclusion that his signatures and initials on the contract manifested his agreement to its terms].) As a consequence, Plaintiffs' mutual assent argument (Opp. at § III(F)) is unavailing.

Unconscionability

Plaintiffs argue the Arbitration Agreement is both substantively and procedurally unconscionable.

Unconscionability requires proof of both procedural and substantive unconscionability, based on a sliding scale such that the greater the procedural unconscionability, the lesser the required showing of substantive unconscionability, and vice versa. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *OTO, supra*, 8 Cal.5th at 125.) Procedural unconscionability involves the components of “oppression” and “surprise.” (*OTO, supra*, 8 Cal.5th at 126.) “ ‘ ‘Oppression” arises from an inequality of bargaining power which results in no real negotiation and “an absence of meaningful choice.” [Citation.]’ [Citation omitted.]” (*Martinez v. Master Protection Corp.* (2004) 118 Cal.App.4th 107, 114.) Surprise for purposes of procedural unconscionability arises where the allegedly unconscionable term “is hidden within a prolix printed form. [Citation, internal quotation marks omitted.]” (*OTO, supra*, 8 Cal.5th at 126 [quoting *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 247].)

When the agreement is a contract of adhesion, there is some showing of oppression and a degree of procedural unconscionability. (*OTO, supra*, 8 Cal.5th at 126.) Contracts of adhesion, however, “remain valid and enforceable unless the resisting party can also show that one or more of the contract’s terms is substantively unconscionable or otherwise invalid.” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492-493.)

“Substantive unconscionability looks beyond the circumstances of contract formation and considers ‘the fairness of an agreement’s actual terms’ [citation omitted], focusing on whether the contract will create unfair or one-sided results [citation omitted.]. Substantively unconscionable contractual clauses ‘reallocate risks in an objectively unreasonable or unexpected manner.’ [Citations omitted.]” (*Ramirez, supra*, 16 Cal.5th at 493.)

Procedural Unconscionability

Plaintiffs contend that the Arbitration Agreement is procedurally unconscionable because it “was presented on a take-it-or-leave-it basis[.]” (Opp. at § III(A)(1).) However, the Arbitration Agreement here states that the resident or resident’s legal representative “understand[s] that you have the choice to opt out of [the provisions requiring arbitration] with respect to any future, but not existing, claims against [Brookdale Danville],” and provides a space to sign to opt out. (Davis Decl. at ¶ 7, Ex. A at § V(C).) The arbitration agreement also states that consent to arbitrate may be withdrawn within 30 days upon written notice to Brookdale Danville. Residency was not predicated on agreement to arbitration and Plaintiffs had a meaningful choice to opt out.

As a consequence, Plaintiffs’ “take it or leave it” argument fails. Thus, Plaintiffs have failed to establish procedural unconscionability. Since both procedural and substantive unconscionability must be present to preclude enforcement, Plaintiffs fail to establish that the Agreement is unenforceable for unconscionability. However, in the interest of completeness the Court will continue the substantive unconscionability analysis.

Substantive Unconscionability

Plaintiffs make several substantive unconscionability arguments. Specifically, they argue the confidentiality, cost-splitting, and discovery limitations in the Arbitration Agreement are substantively unconscionable.

In order to find an agreement substantively unconscionable, it must be so “one-sided as to shock the

conscience.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246.)

Confidentiality

Plaintiffs argue that the broad confidentiality provision of the agreement (barring any resident claimant from disclosing the proceedings, the parties, the facility, the issues, the documents exchanged, the witnesses and their testimony, and the arbitrator’s award and reasoning) is substantively unconscionable. (Opp. at 4:12-23 [citing *Haydon v. Elegance of Dublin* (2023) 97 Cal.App.5th 1280, 1290 and *Ting v. AT&T* (9th Cir. 2003) 319 F.3d 1126, 1151–1152].)

In *Haydon*, *supra*, 97 Cal.App.5th at 1290, the appellate court found the confidentiality provision barring the parties from “disclos[ing] the existence, content, or results of arbitration” substantively unconscionable. The *Haydon* court wrote, “as in the employment context, confidential arbitration of claims like Haydon’s tilt[s] the scales of justice against potential victims of abuse by denying [them] access to any information about other claims against the facility.” (*Id.* at 1290 [cleaned up].) The *Haydon* court found the confidentiality requirement to be unconscionable to a “high degree” because it is at odds with the Legislature’s declaration that “confidential settlement agreements are disfavored in actions involving violations of the Elder Abuse Act.” (*Ibid.* [cleaned up].)

In *Ting*, a class action lawsuit on behalf of over 7 million residential telephone customers, at issue was a provision in long-distance telecommunication carrier contracts that required “[a]ny arbitration [to] remain confidential.” (319 F.3d at 1151.) The court concluded the provision was unconscionable because “plaintiffs are unable to mitigate the advantages inherent in being a repeat player. This is particularly harmful here, because the contract at issue affects seven million Californians. Thus, AT&T has placed itself in a far superior legal posture by ensuring that none of its potential opponents have access to precedent while, at the same time, AT&T accumulates a wealth of knowledge on how to negotiate the terms of its own unilaterally crafted contract. Further, the unavailability of arbitral decisions may prevent potential plaintiffs from obtaining the information needed to build a case of intentional misconduct or unlawful discrimination against AT&T.” (*Id.* at 1152.) It is unclear what application *Ting* has here because Plaintiffs make no showing that Defendants are a “repeat player” or, assuming they are, that arbitration confidentiality will put them in a superior legal posture.

That said, the confidentiality provision here does seem quite broad, as it includes “all arbitration filings, deposition transcripts, documents produced or obtained in discovery, or other material provided by and exchanged between the parties and the arbitrator’s findings of fact and conclusions of law.” (Davis Decl. at ¶ 7, Ex. A at § V(A)(12).) As in *Haydon*, this confidentiality clause appears to be so broad it would prevent the Plaintiffs from informally investigating their claims. (*Haydon*, *supra*, 97 Cal.App.5th at 1290.) There is no provision, for example, allowing for communication with potential witnesses to the extent necessary. However, Defendants make some persuasive points distinguishing *Haydon* – for example, in *Haydon* there was significant procedural unconscionability along with the substantive issues with the confidentiality clause. Here, Plaintiffs have not demonstrated any procedural unconscionability. That said, the Court concludes that the confidentiality provision is unconscionable.

Cost-Splitting

Plaintiffs also argue that the equal cost sharing provision unfairly benefits Defendants.

While cost-splitting in arbitration proceedings in the employment context have been found to be substantively unconscionable (*Armendariz*, *supra*, 24 Cal.4th at 110–111 [“when an employer imposes

mandatory arbitration as a condition of employment, the arbitration agreement or arbitration process cannot generally require the employee to bear any type of expense that the employee would not be required to bear if he or she were free to bring the action in court” (italics omitted))), Plaintiffs have not provided any authority (and the Court is not aware of any) that reaches the same conclusion outside of the employment law context. Furthermore, Plaintiffs have not introduced any evidence regarding the fees themselves or Plaintiffs’ ability to pay. As a consequence this argument is entirely speculative. On this record, the Court cannot conclude that the cost-splitting provision is unconscionable.

Discovery Limitations

Plaintiffs argue that the discovery limitations in the incorporated JAMS Comprehensive Rules (a single deposition and no interrogatories or requests for admissions) is substantively unconscionable.

Significantly, adequate discovery in arbitration does not equal unfettered discovery, and parties may agree to something less than what is available under the Code of Civil Procedure. (See *Sanchez v. Carmax Auto Superstores Cal, LLC* (2014) 224 Cal.App.4th 398, 404 [citing *Armendariz v. Foundation Health Psycare Servs., Inc.* (2000) 24 Cal.4th 83, 105-060].) “[Arbitration is meant to be a streamlined procedure. Limitations on discovery... is one of the ways streamlining is achieved.” (*Dotson v. Amgen, Inc.* (2010) 181 Cal.App.4th 975, 983.) “In striking the appropriate balance between the desired simplicity of limited discovery and an employee’s statutory rights, courts assess the amount of default discovery permitted under the arbitration agreement, the standard for obtaining additional discovery, and whether the plaintiffs have demonstrated that discovery limitations will prevent them from adequately arbitrating their statutory claims.” (*De Leon v. Pinnacle Property Management Services, LLC* (2021) 72 Cal.App.5th 476, 487.) This is not an employment case and Plaintiffs have not made any showing that discovery limitations would prevent them from adequately arbitrating their claims. Furthermore, as noted by Defendants, JAMS rules vest the arbitrator with discretion to allow additional discovery. (RJN Ex. A.)

The Court cannot conclude that the discovery limitations are unconscionable.

Injunctive Relief

Plaintiffs also argue that the provision of the arbitration agreement that appears to preclude them from seeking injunctive relief renders the agreement unenforceable under *McGill v. Citibank* (2017) 2 Cal.5th 945, 961 (*McGill*). Specifically, Plaintiffs argue that section V(A)(2) of the agreement forecloses public injunctive relief.

In *McGill*, the California Supreme Court considered “whether the arbitration provision is valid and enforceable insofar as it purports to waive [a credit card holder’s] right to seek public injunctive relief in any forum.” (*Id.* at 956.) The relevant provisions of the agreement at issue there were as follows: “(1) ‘[a]n award in arbitration shall determine the rights and obligations between the named parties only, and only in respect of the Claims in arbitration, and shall not have any bearing on the rights and obligations of any other person, or on the resolution of any other dispute’; (2) ‘[t]he arbitrator will not award relief for or against anyone who is not a party’; (3) ‘the arbitrator may award relief only on an individual (non-class, nonrepresentative) basis’; and (4) ‘neither you, we, nor any other person may pursue the Claims in arbitration as a class action, private attorney general action or other representative action.’” (*Ibid.*) After discussing the impact of changes to the UCL, the court held, “the waiver in a predispute arbitration agreement of the right to seek public injunctive relief under these statutes would seriously compromise the public purposes the statutes were intended to serve. Thus, insofar as the arbitration provision here purports to waive [the credit card holder’s] right to request in

any forum such public injunctive relief, it is invalid and unenforceable under California law.” (*Id.* at 961.)

Here, the provision of the class and representative claims waiver states that “[y]ou and the Company agree that each of us may bring claims against the other only on an individual basis and not as a named or putative class member in any purported class, or representation action or proceeding” and “[u]nless both you and the Community agree otherwise in writing, the arbitrator may not consolidate or join more than one person’s or party’s claims, and may not otherwise preside over any form of a consolidated representative or class action proceeding.” (Agreement § V(A)(2).) As a consequence, the provision appears to preclude Plaintiffs from seeking public injunctive relief and is substantively unconscionable. (*McGill, supra*, 2 Cal.5th at 959.)

However, the Court cannot conclude that the Arbitration Agreement is permeated by substantive unconscionability. Instead, the Court finds that Plaintiffs have shown a low level of substantive unconscionability based on the confidentiality and injunctive relief provisions. However, in the absence of any procedural unconscionability, this low level of substantive unconscionability is insufficient to render the entire agreement unenforceable.

Section 1281.2

Finally, Plaintiffs argue that the Court should decline to compel arbitration under Code of Civil Procedure section 1281.2 because Plaintiffs’ wrongful death claims are not arbitrable. In opposition, Defendants argue that the Court lacks discretion under 1281.2(c) to deny the motion, as the FAA requires arbitration of all causes of action against Defendants and the stay of any non-arbitrable claims.

There are three conditions necessary for section 1281.2, subdivision (c) to apply: (1) there must be ongoing litigation between a signatory and a third party; (2) this litigation arises out of the same facts, incidents, or transactions as the dispute between signatories; and (3) conflicting rulings may result if these disputes are heard separately in arbitration and in court. (*Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967-968.)

“A trial court has no discretion to deny or stay arbitration unless all three of section 1281.2[, subdivision] (c)’s conditions are satisfied.” (*Acquire II, supra*, 213 Cal.App.4th at 968.) “Whether there are conflicting issues arising out of related transactions is a factual determination subject to review under the substantial evidence standard.” (*Id.* at 972.) “[T]he allegations of the parties’ pleadings may constitute substantial evidence sufficient to support a trial court’s finding that section 1281.2[, subdivision] (c) applies.” (*Ibid.*)

Once these conditions are met, the court may exercise its discretion to choose among four options: (1) “refuse to enforce the arbitration agreement,” (2) “order intervention or joinder as to all or only certain issues,” (3) order arbitration as to the parties in agreement and stay the pending court action, or (4) stay the arbitration until completion of the pending court action. (§ 1281.2.)

In *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 841, the Supreme Court carved out an exception to the general rule that only parties to arbitration agreements are bound, holding with respect to medical malpractice claims that “all wrongful death claimants are bound by arbitration agreements entered into pursuant to section 1295, at least when . . . the language of the agreement manifests an intent to bind these claimants.” The court in *Ruiz* explained, “‘Section 1295 was enacted as part of the Medical Injury Compensation Reform Act of 1975 (MICRA). . . . The purpose of section 1295 is to encourage and facilitate arbitration of medical malpractice disputes. [Citations.] Accordingly,

the provisions of section 1295 are to be construed liberally.’ In other words, the encouragement of arbitration “‘as a speedy and relatively inexpensive means of dispute resolution’” [citation] furthers MICRA’s goal of reducing costs in the resolution of malpractice claims and therefore malpractice insurance premiums.” (*Id.* at 843-844; accord, *Holland v. Silverscreen Healthcare, Inc.* (2024) 101 Cal.App.5th 1125, 1132 [“*Ruiz* concluded ‘that section 1295, construed in light of its purpose, is designed to permit patients who sign arbitration agreements to bind their heirs in wrongful death actions.’”].)

The court in *Ruiz* found that the arbitration agreement executed by the patient contained language that complied with CCP 1295 and an intent to bind all parties whose claims might arise out of or relate to the medical treatment. (*Ruiz, supra*, 50 Cal.4th at 841-842.) As such, in *Ruiz*, the court found that there was an agreement to arbitrate claims of the patient’s spouse and heirs, including for wrongful death and loss of consortium. (*Id.* at 849-850.) The *Ruiz* court held: “we are persuaded that section 1295, construed in light of its purpose, is designed to permit patients who sign arbitration agreements to bind their heirs in wrongful death actions.” (*Id.* at 849.)

Subsequently, in *Holland*, the court relied on the holding in *Ruiz* and determined that the plaintiffs’ wrongful death claims were subject to arbitration, because the deceased patient had signed an arbitration agreement that complied with CCP 1295 and that manifested an intent to bind heirs, including for wrongful death claims. (*Holland, supra*, 101 Cal.App.5th at 1129-1130.) The court further found that “the parents’ barebones claim against [the facility] Asistencia sounds in professional negligence,” because the complaint alleged that “Asistencia owed [the deceased] Skyler duties, that Asistencia failed to meet its duties, and that ‘[a]s a proximate result of negligence and ‘neglect’ ... [Skyler] died.’” (*Id.* at 1133.) The court further found that “[t]he allegations of understaffing and the failure to prevent Skyler from falling or developing infections speak to ‘negligent act[s] or omission[s] to act by a health care provider in the rendering of professional services’ which proximately caused Skyler’s death. (§ 1295, subd. (g)(2).)” (*Ibid.*) The court in *Holland* held: “We will not permit plaintiffs to circumvent *Ruiz* through intentionally opaque pleading.” (*Id.* at 1135.)

Although the petition for review of the opinion in *Holland*, was granted, the ruling “may be cited, not only for its persuasive value, but also for the limited purpose of establishing the existence of a conflict in authority that would in turn allow trial courts to exercise discretion ... to choose between sides of any such conflict.” (*Holland v. Silverscreen Healthcare, Inc.* (Cal. 2024) 553 P.3d 865.)

In this case, Plaintiffs’ wrongful death claim clearly sounds in professional negligence, based on the allegations that Defendants failed to carry out their duties to provide adequate nursing care to Greenlaw. Further, there is a clear intent in the arbitration agreement to bind the decedent’s heirs and encompass the claims in this case. (Agreement at § V(A)(1) [“Any and all claims or controversies arising out of, or in any way relating to services and care provided by the Community pursuant to this Agreement ... shall be submitted to binding individual arbitration.”].) As such, the intent of CCP 1295, under the precedent in *Ruiz* and as supported by the ruling in *Holland*, mandates that Plaintiffs arbitrate their claims against Defendants in this action. Furthermore, because CCP 1295 applies, Plaintiffs cannot rely on 1281.2(c) to argue an exception to enforcement of the arbitration agreement,

pursuant to the plaint language of said provision. (Code Civ. Proc. § 1281.2, subpart (c).)

Conclusion: The Arbitration Agreement is Valid

The court finds Defendants have sufficiently demonstrated: (1) the parties entered into a written agreement to arbitrate; (2) the claims at issue are covered by that agreement; and (3) the responding party refused a prior demand for arbitration under the agreement of the claims at issue. (Code Civ. Proc, § 1281.2; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) Thus, the burden shifts to Plaintiffs to prove by a preponderance of evidence a ground for denial. (*Engalla*, 15 Cal.4th at 972.) Based on the state of the record, as applied to the applicable law, the Court concludes Plaintiffs have not adequately demonstrated either procedural unconscionability and substantive unconscionability. (See *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 247 [stating both procedural unconscionability and substantive unconscionability must be shown.]) Therefore, the Court concludes Plaintiffs have not met the shifted burden required.

For the foregoing reasons, the Motion is **granted**.